

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

12. RILEY BEBITA V. NICHOLAS BEBITA

26FL0071

Petitioner filed a Request for Order (RFO) on February 5, 2026, seeking custody and parenting time orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on March 4, 2026, and a review hearing on April 30, 2026.

Petitioner appeared for the hearing on April 30, 2026, and requested the matter be continued to allow additional time to properly serve Respondent. Petitioner confirmed Respondent is on active duty in the military and is currently deployed. The court granted the request to continue the matter and rereferred the parties to CCRC with an appointment on June 8, 2026, and set a further review hearing for July 16, 2026.

Respondent was personally served all required documents, including the Petition and Summons, on April 30, 2026. Respondent was subsequently personally served with the amended referral to CCRC, changing the appointment to June 11th.

Only Petitioner appeared at the June 11, 2026, CCRC appointment. A single parent report was lodged with the court on June 11, 2026 and mailed to the parties the same day. Respondent's copies were returned by the Postal Service.

The court is concerned about Respondent's ability to participate fully in the proceedings given his current active-duty status. As such, under the Servicemembers Relief Act (50 USC §§ 3901-4026) the court appoints counsel to Respondent. Kelly Bentley is appointed to Respondent. The court finds good cause to continue the matter to allow counsel to contact Respondent to determine his position as to a stay of these proceedings. The court sets the matter for a further review hearing on Thursday, October 1st at 1:30 PM in Department 5. Pending the review hearing, the court grants Petitioner temporary sole legal and physical custody of the minor pursuant to Family Code § 3047.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #12: PURSUANT TO THE SERVICEMEMBERS RELIEF ACT (50 USC §§ 3901-4026) THE COURT APPOINTS COUNSEL TO RESPONDENT. KELLY BENTLEY IS APPOINTED TO RESPONDENT. THE COURT FINDS GOOD CAUSE TO CONTINUE THE MATTER TO ALLOW COUNSEL TO CONTACT RESPONDENT TO DETERMINE HIS POSITION AS TO A STAY OF THESE PROCEEDINGS. THE COURT SETS THE MATTER FOR

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A FURTHER REVIEW HEARING ON THURSDAY, OCTOBER 1ST AT 1:30 PM IN DEPARTMENT 5. PENDING THE REVIEW HEARING, THE COURT GRANTS PETITIONER TEMPORARY SOLE LEGAL AND PHYSICAL CUSTODY OF THE MINOR PURSUANT TO FAMILY CODE § 3047.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.